

26CMCV00182 26CMCV00182

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-18

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The court has reviewed the Petition to Confirm Minor's Compromise with Special Needs Trust. The court's tentative ruling is to deny the petition, without prejudice, on the following grounds:

The settlement involves the creation of a special needs trust ("SNT"). The settlement involves the creation of a special needs trust ("SNT"). Pursuant to Local Rule 4.115, subd. (a)(2), if a settlement for a minor is reached in a pending civil action, the proper court to approve the settlement is the court in which the action is pending. However, when the

settlement proposes the establishment of an SNT, the Probate Division must review the terms of the proposed trust, which terms must include the provisions required in Cal. Rules of Ct. Rule 7.903 and Local Rule 4.116. (Local Rule 4.115, subd. (b).) "To facilitate timely review, a party seeking to establish and fund a trust as part of a petition for approval of a compromise filed in a civil department pursuant to subsection (a)(2) of this rule must, within two court days of the

filing of the petition to approve the compromise and trust, lodge with the filing window of the Probate Division at Stanley Mosk Courthouse a physical copy of the face page of the petition to approve the compromise and attach a copy of the proposed trust instrument and the proposed order approving the compromise and trust." (Id.)

It appears Petitioner failed to comply with Local Rule 4.115. The court specially sets a continued hearing on the Petition for September 11, 2026, 8:30 a.m. Petitioner is ordered to timely lodge with the Probate Division the documents required by Local Rule 4.115, subdivision (b).

In addition, Petitioner failed to comply with Section 10(c) of the Petition, by failing to adequately set forth

or attach the terms of the settlement. Petitioner may cure this defect by either filing an amended

Petition or by filing a declaration in support of the Petition attaching the settlement agreement at

issue, no later than five court days prior to the September 11, 2026 hearing.

In addition, the Court notes that Petitioner has not filed a proof of service establishing that Petitioner served, at least 15 days before the hearing and by mail, the State Director of Health Care Services, the Director of State Hospitals, and the Director of Developmental Service with (1) notice of the time and place of the hearing on the Petition, or (2) a copy of the Petition, as required by Probate Code sections 3602, subd. (f) and 3611, subd. (c). Petitioner is ordered to comply with these requirements with respect to the continued hearing date set forth herein and file the required proof of service prior to filing the required submission to the Probate Division discussed supra.

Therefore , the Hearing on Petition to Confirm Minor's Compromise scheduled for August 18, 2026 is continued to September 11, 2026 at 08:30 AM in Department A at Compton Courthouse.